

**Court No. - 32**

**Case :-** WRIT - C No. - 37937 of 2019

**Petitioner :-** Hira Lal

**Respondent :-** State Of U.P. And 2 Others

**Counsel for Petitioner :-** Wahaj Ahmad Siddiqui

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Shashi Kant Gupta,J.**

**Hon'ble Piyush Agrawal,J.**

This writ petition has been filed, *inter alia*, for the following reliefs:

*"i) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate dated 31.7.2019.*

*(ii) Issue a writ order or direction in the nature of mandamus commanding the respondent authorities not to take any coercive measure in pursuance of the impugned recovery certificate dated 31.7.2019.*

*(iii) Issue a writ order or direction in the nature of mandamus commanding the respondents to decide the grievance of the petitioner pending before the respondent no.2."*

Heard Sri Wahaj Ahmad Siddiqui, learned counsel for the petitioner, learned Standing Counsel for State and Sri Mahboob Ahmad, learned counsel for the Electricity Department and perused the record.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the Respondent No. 2, Executive Engineer/appropriate authority for redressal of his grievance within 15 days from today, his application may be considered and decided by the said authority in accordance with law expeditiously preferably within 15 days from the date of receipt of a certified copy of this order, copy of the writ petition and its annexures by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 45 days or until the disposal of the application of the petitioner, whichever is earlier, the concerned authority shall not adopt any coercive measure against the petitioner in pursuance of impugned recovery certificate dated 31.7.2019.

We make it clear that we have not entered into the merits of the claim being made by the petitioner and the same shall be decided by the Respondent No. 2 on its own merits.

It is also made clear that in case the application under Clause 6.5 of the U.P. Electricity Supply code, 2005 is not filed by the petitioner within stipulated period as fixed by this Court, the interim protection granted to the petitioner shall automatically come to an end and the concerned authority is free to adopt any coercive measure against the petitioner.

With the aforesaid observation, the writ petition is finally **disposed of.**

**Order Date :- 25.11.2019**

Rahul Dwivedi/-